

23STCV06768 23STCV06768

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Case Number: 23STCV06768 Hearing Date: July 17, 2026 Dept: 224

Sanchez v. Pro Residential Services, Inc.

TENTATIVE RULING

The demurrer is OVERRULED. Defendants' Answers are Due in 30 days. The Court will set a trial date at the CMC today.

ANALYSIS

Introduction

On March 28, 2023, Plaintiff Julieta Sanchez filed a Complaint in this action.

On February 21, 2025, Plaintiff filed a Second Amended Complaint.

On February 11, 2026, the Court heard and sustained Defendants' Demurrer to the

Second Amended Complaint, sustaining the demurrer without leave to amend as to the second, third, and fourth causes of action, sustaining the demurrer with leave to amend as to the first cause of action, and ordering Plaintiff to file a Third Amended Complaint within 20 days.

On February 17, 2026, Plaintiff filed the operative Third Amended Complaint, omitting the FEHA and Labor Code section 1102.5 causes of action and re-pleading the first cause of action for constructive wrongful termination in violation of public policy.

On March 27, 2026, Defendants filed the instant Demurrer as to the first cause of action of the Third Amended Complaint.

No opposition is on file. However, on July 7, 2026, Plaintiff submitted a Fourth Amended Complaint. The Court notes that a party's right to amend its pleading without leave of the court pursuant to California Code of Civil Procedure section 472(a) applies only once, and that right attaches only to the original pleading. Accordingly, the Court strikes the July 7, 2026 Fourth Amended Complaint as being filed without leave of court.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Joseph Arias, executed on March 27, 2026, sets forth the meet and confer efforts of counsel for the Defendants, and counsel's attempts to resolve the dispute telephonically. The declaration satisfies the requirement of Code of Civil Procedure section 430.41.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper

judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

First Cause of Action: Constructive Wrongful Discharge in Violation of Public Policy

Defendants demur to the first cause of action on the ground that Plaintiff has not alleged a viable statutory basis for her public policy claim.

An employee who is forced to resign due to actions and conditions so intolerable or aggravated at the time of his resignation that a reasonable person in the employee's position would have resigned, and whose employer had actual or constructive knowledge of the intolerable actions and conditions and of their impact upon the employee and could have remedied the situation, but did not, is constructively discharged. (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1245, 1251; Cloud v. Casey (1999) 76 Cal.App.4th 895, 902 – 903 (In order to establish a constructive discharge, an employee must plead and prove, by the usual preponderance of the evidence standard, that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee's resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign.)).

To state a claim for wrongful termination in violation of public policy, a plaintiff must be able to show that (1) the plaintiff was employed by the defendant, (2) the defendant discharged the plaintiff, (3) the violation of public policy was a substantial motivating reason for the plaintiff's discharge, and (4) the discharge caused the plaintiff harm. (Haney v. Aramark Uniform Services, Inc. (2004) 121 Cal.App.4th 623, 641; CACI 2430.) There are four requirements that a policy must meet in order to support a wrongful discharge claim: (1) the policy is supported by either constitutional or statutory provisions; (2) the policy is "public" in that it "inures to the benefit of the public" and not merely the interests of the individual; (3) the policy was articulated at the time of the discharge; and (4) the policy is "fundamental" and "substantial." (Franklin v. Monadnock Co. (2007) 151 Cal.App.4th 252, 258.)

The Court sustained this cause of action as pleaded in the SAC because it rested entirely on Plaintiff's FEHA claims, which the Court found deficient. A statutory or constitutional provision is a foundational requirement of a public policy claim.

(Sequoia Ins. Co. v. Superior Court (1993) 13 Cal.App.4th 1472, 1479-1480.)

The question is whether the TAC has now alleged a viable underlying statutory violation. As now pleaded, the claim rests on Government Code sections 12940(j), 12940(k), and 12923; Labor Code sections 6400, 6401.7, and 6401.9; and Defendants' refusal to seek a workplace restraining order.

To the extent the public-policy claim continues to rest on FEHA, it remains deficient for the reason previously identified. The TAC no longer alleges that Solorio targeted Plaintiff because of her sex. It alleges he targeted her for confronting him about workplace misconduct and for blaming her for his termination. Absent a nexus to a protected characteristic, there is no FEHA violation, and the Court has already sustained the demurrer to the FEHA causes of action without leave to amend.

As to Labor Code section 6401.9 and Code of Civil Procedure section 527.8, these provisions cannot supply the requisite policy because they were not articulated at the time of the discharge. (Franklin, *supra*, 151 Cal.App.4th at p. 258.) Labor Code section 6401.9, which requires employers to establish a workplace violence prevention plan, became operative on July 1, 2024. The events on which the TAC is based occurred in 2022. (TAC ¶ 20.) A public policy that did not exist at the time of Plaintiff's October 2022 resignation cannot support the claim.

The alleged failure to seek a workplace restraining order fares no better. Code of Civil Procedure section 527.8 authorizes, but does not require, an employer to petition for a restraining order on behalf of an employee (an employer "may seek" relief). A permissive statutory option cannot give rise to a mandatory public duty whose breach violates public policy. Moreover, the provision's extension to "harassment" (as distinct from violence or a credible threat of violence) took effect in 2025, after the relevant events. The refusal-to-seek-a-restraining-order theory therefore does not, standing alone, state a public-policy violation.

Labor Code section 6400, however, states a viable basis. Section 6400 requires every employer to furnish employment and a place of employment that is safe and healthful for its employees. It has been in effect at all relevant times, including in

2022. California courts have long recognized that the statutory scheme governing workplace safety, of which section 6400 is a part, embodies a fundamental public policy that inures to the benefit of the public and will support a claim for wrongful discharge in violation of public policy. (Hentzel v. Singer Co. (1982) 138 Cal.App.3d 290, 297-300.) The Court notes that Defendants' assertion that section 6401.7 "did not become effective until July 1, 2024" is mistaken; that operative date applies to section 6401.9, not to sections 6400 or 6401.7. Defendants' moving papers do not otherwise address section 6400.

Read liberally and taken as true, the TAC alleges that Solorio had a known violent criminal history including a prior shooting at the property; that Defendants knew he was on house arrest; that he threatened Plaintiff, including telling her words to the effect that she had him "f****d up" and asking whether she knew what he could do to her; that Plaintiff complained verbally at least twice weekly from September 2022 and in writing on October 11, 2022; that Solorio's associates banged on office doors and threatened to "get" her; that Plaintiff provided videos, resident reports, and recordings; that she requested a workplace restraining order and other protective measures; and that Defendants refused to act, did not investigate, and implemented no security measures. (TAC ¶¶ 21-46.) Those allegations describe credible threats of violence, which Plaintiff reasonably believed would be carried out and which caused her to fear for her safety. At the pleading stage, those allegations are sufficient to anchor the public-policy claim on the workplace-safety policy reflected in section 6400, independent of the abandoned FEHA theory.

Defendants' contention that Plaintiff's own allegations establish an adequate response, namely documentation, Alvarez's intervention, and Solorio's termination, raises factual questions not resolvable on demurrer. The Court accepts as true Plaintiff's allegations that Defendants refused to act and failed to investigate. Solorio's November 2022 termination also post-dated Plaintiff's October 19, 2022 resignation and does not establish adequacy as a matter of law.

Conclusion

The demurrer is OVERRULED. Defendants' Answers are Due in 30 days. The Court will set a trial date at the CMC today.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.